

Present:

Mr. Justice S M Kuddus Zaman
and
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.41999 of 2019.

Md. Monir Ahmed

.....Accused-Petitioner

-Versus-

The State and

... Opposite Party

Md. A. S. M. Rakib-Uk-Bahar Chowdhury, Advocate

.... For the accused-petitioner

Mr. Sujit Chatterjee, D.A.G

... For the State

Heard and Judgment on: 07.02.2024.

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure the Rule was issued calling upon the opposite party to show as to why the proceeding of NTC No.258 of 2018 initiated under sections 9(1)/30 of the Nari-O-Shishu Nirjatan Daman Ain 2000, now pending in the Court of learned Nari-O-Shishu Nirjatan Daman Tribunal, Jhenaidah should not be quashed and/or pass such other or further order of orders as to this Court may seem fit and proper.

Facts in short are that alleged victim Most. Moyna Khatun a woman of 31 years of age lodged a complaint to the Nari-O-Shishu Nirjatan Daman Tribunal, Jhenaidah alleging that accused petitioner Md. Monir Ahmmed was her collogue in Unnion Dhara Sogastha. They were engaged in a relationship and on 14.03.2018 the accused petitioner along with co-accused Nos.2-5 came to her rented house and organized her marriage ceremony with above accused. The marriage was solemnized by an Imam after recitation from the Holy Quran and she and above accused gave signatures on green papers for registration of their marriage. Thereafter the

accused petitioner lived with the complainant as husband in her dwelling house and the complainant accepted him as her lawful husband.

Subsequently above accused stopped all communications with the complainant and refused to give her a copy of above kabinnama and her attempts to make a peaceful settlement of above disputed failed.

After examination of the complainant under section 200 of the Code of Criminal Procedure the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal directed for a judicial enquiry of above allegations.

The learned Judicial Magistrate, 1st Court, Jhenaidah on conclusion of enquiry submitted a report on 09.09.2018 mentioning that the marriage of the complainant with accused petitioner Md. Monir Ahammed was lawful and the same still exists.

On consideration of facts and circumstances of the case and above enquiry report the learned Judge of Nari-O-Shishu Nirjatan Daman Tribunal took cognizance against the petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 and framed charge against the accused petitioner under above provision of the above Ain on 23.04.2019.

Being aggrieved by above order of framing of charge by the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal above accused as petitioner moved to this court and obtained this rule.

Md. A. S. M. Rakib-Uk-Bahar Chowdhury learned Advocate for the petitioner submits that in the complaint the alleged victim has stated that her marriage with the accused was solemnized by an Imam and the same was also registered. On conclusion of enquiry the learned Judicial Magistrate found truth in above claim of the complainant. Since the complainant was a lawfully married wife of the petitioner the framing of charge against the petitioner under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 by the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal, Jhenaidah was misconceived and not tenable in law.

Ms. Farhana Afroze Runa frankly concedes that on consideration of the facts and circumstances of the case and materials on record she is unable to defend the legality and propriety of the impugned order passed by the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal, Jhenaidah.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record

As mentioned above the complaint was lodged by the alleged victim of this case namely Moyna Khatun who is of 31 years of age. In the complaint she has stated that she had relation with the petitioner for a long time and on mutual consent they agreed to marry. Above marriage was held in the presence of co-accused Nos.2-5 and the same was solemnized by co-accused No.4 Md. Abul Basar after recitation from the Holy Quran. Above marriage was registered on obtaining signatures of both the accused and herself. There is no specific allegation in the complaint that above marriage was sham or the registration of the marriage was false, forged and concocted. It has been merely alleged that after a while the petitioner stopped communication with her and failed to hand over to her a copy of the kabinnama.

In course of enquiry the learned Magistrate examined as many as eight witnesses including the complainant and her sister and on conclusion of above enquiry he found that the marriage of the complainant with the petitioner was a lawful and valid marriage and the same still exists.

On consideration of above facts and circumstances of the case and materials on record we are of the view that there was no prima-facie proof that the marriage of the complainant with the accused was a sham marriage which was not lawfully solemnized and registered as has been alleged by the complainant but the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal failed to appreciate above materials on record properly and most illegally framed charge against the petitioner who is a lawful husband

of the complainant under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 which is not tenable in law.

In above view of the materials on record we find substance in this petition and the rule issued in this connection deserves to be made absolute.

Accordingly, the Rule is made absolute.

The impugned order of proceeding of NTC No.258 of 2018 initiated under sections 9(1)/30 of the Nari-O-Shishu Nirjatan Daman Ain 2000, now pending in the Court of learned Nari-O-Shishu Nirjatan Daman Tribunal, Jhenaidah is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.